



EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

Please note that this form will work correctly only with Adobe Reader 9 Upwards (download available from www.adobe.com).
Please save a copy of this form locally before filling it in using Adobe Reader, then print it and post it to the Court.

ENG - 2018/1

Application Form

About this application form

This form is a formal legal document and may affect your rights and obligations. Please follow the instructions given in the "Notes for filling in the application form". Make sure you fill in all the fields applicable to your situation and provide all relevant documents.

Warning: If your application is incomplete, it will not be accepted (see Rule 47 of the Rules of Court). Please note in particular that Rule 47 § 2 (a) requires that a concise statement of facts, complaints and information about compliance with the admissibility criteria **MUST** be on the relevant parts of the application form itself. The completed form should enable the Court to determine the nature and scope of the application without recourse to any other submissions.

Barcode label

If you have already received a sheet of barcode labels from the European Court of Human Rights, please place one barcode label in the box below.

Reference number

If you already have a reference number from the Court in relation to these complaints, please indicate it in the box below.

A. The applicant

A.1. Individual

This section refers to applicants who are individual persons only. If the applicant is an organisation, please go to section A.2.

1. Surname

2. First name(s)

3. Date of birth

1	5	0	5	1	9	8	2
D	D	M	M	Y	Y	Y	Y

 e.g. 31/12/1960

4. Place of birth

5. Nationality

6. Address

7. Telephone (including international dialling code)

8. Email (if any)

9. Sex ☐ male ☒ female

A.2. Organisation

This section should only be filled in where the applicant is a company, NGO, association or other legal entity. In this case, please also fill in section D.1.

10. Name

11. Identification number (if any)

12. Date of registration or incorporation (if any)

D	D	M	M	Y	Y	Y	Y

 e.g. 27/09/2012

13. Activity

14. Registered address

15. Telephone (including international dialling code)

16. Email

B. State(s) against which the application is directed

17. Tick the name(s) of the State(s) against which the application is directed.

- | | |
|---|--|
| ☐ ALB - Albania | ☐ ITA - Italy |
| ☐ AND - Andorra | ☐ LIE - Liechtenstein |
| ☐ ARM - Armenia | ☐ LTU - Lithuania |
| ☐ AUT - Austria | ☐ LUX - Luxembourg |
| ☐ AZE - Azerbaijan | ☐ LVA - Latvia |
| ☒ BEL - Belgium | ☐ MCO - Monaco |
| ☐ BGR - Bulgaria | ☐ MDA - Republic of Moldova |
| ☐ BIH - Bosnia and Herzegovina | ☐ MKD - North Macedonia |
| ☐ CHE - Switzerland | ☐ MLT - Malta |
| ☐ CYP - Cyprus | ☐ MNE - Montenegro |
| ☐ CZE - Czech Republic | ☐ NLD - Netherlands |
| ☐ DEU - Germany | ☐ NOR - Norway |
| ☐ DNK - Denmark | ☐ POL - Poland |
| ☐ ESP - Spain | ☐ PRT - Portugal |
| ☐ EST - Estonia | ☐ ROU - Romania |
| ☐ FIN - Finland | ☐ RUS - Russian Federation |
| ☐ FRA - France | ☐ SMR - San Marino |
| ☐ GBR - United Kingdom | ☐ SRB - Serbia |
| ☐ GEO - Georgia | ☐ SVK - Slovak Republic |
| ☐ GRC - Greece | ☐ SVN - Slovenia |
| ☐ HRV - Croatia | ☐ SWE - Sweden |
| ☐ HUN - Hungary | ☐ TUR - Turkey |
| ☐ IRL - Ireland | ☐ UKR - Ukraine |
| ☐ ISL - Iceland | |

C. Representative(s) of the individual applicant

An individual applicant does not have to be represented by a lawyer at this stage. If the applicant is not represented please go to section E.

Where the application is lodged on behalf of an individual applicant by a non-lawyer (e.g. a relative, friend or guardian), the non-lawyer must fill in section C.1; if it is lodged by a lawyer, the lawyer must fill in section C.2. In both situations section C.3 must be completed.

C.1. Non-lawyer

18. Capacity/relationship/function

19. Surname

20. First name(s)

21. Nationality

22. Address

23. Telephone (including international dialling code)

24. Fax

25. Email

C.2. Lawyer

26. Surname

27. First name(s)

28. Nationality

29. Address

30. Telephone (including international dialling code)

31. Fax

32. Email

C.3. Authority

The applicant must authorise any representative to act on his or her behalf by signing the first box below; the designated representative must indicate his or her acceptance by signing the second box below.

I hereby authorise the person indicated above to represent me in the proceedings before the European Court of Human Rights concerning my application lodged under Article 34 of the Convention.

33. Signature of applicant

34. Date

e.g. 27/09/2015

D D M M Y Y Y Y

I hereby agree to represent the applicant in the proceedings before the European Court of Human Rights concerning the application lodged under Article 34 of the Convention.

35. Signature of representative

36. Date

e.g. 27/09/2015

D D M M Y Y Y Y

Electronic communication between the representative and the Court

37. Email address for eComms account (if the representative already uses eComms, please provide the existing eComms account email address)

By completing this field you agree to using the eComms system.

D. Representative(s) of the applicant organisation

Where the applicant is an organisation, it must be represented before the Court by a person entitled to act on its behalf and in its name (e.g. a duly authorised director or official). The details of the representative must be set out in section D.1.

If the representative instructs a lawyer to plead on behalf of the organisation, both D.2 and D.3 must be completed.

D.1. Organisation official

38. Capacity/relationship/function (please provide proof)

39. Surname

40. First name(s)

41. Nationality

42. Address

43. Telephone (including international dialling code)

44. Fax

45. Email

D.2. Lawyer

46. Surname

47. First name(s)

48. Nationality

49. Address

50. Telephone (including international dialling code)

51. Fax

52. Email

D.3. Authority

The representative of the applicant organisation must authorise any lawyer to act on its behalf by signing the first box below; the lawyer must indicate his or her acceptance by signing the second box below.

I hereby authorise the person indicated in section D.2 above to represent the organisation in the proceedings before the European Court of Human Rights concerning the application lodged under Article 34 of the Convention.

53. Signature of organisation official

54. Date

D	D	M	M	Y	Y	Y	Y

e.g. 27/09/2015

I hereby agree to represent the organisation in the proceedings before the European Court of Human Rights concerning the application lodged under Article 34 of the Convention.

55. Signature of lawyer

56. Date

D	D	M	M	Y	Y	Y	Y

e.g. 27/09/2015

Electronic communication between the representative and the Court

57. Email address for eComms account (if the representative already uses eComms, please provide the existing eComms account email address)

By completing this field you agree to using the eComms system.

Subject matter of the application

All the information concerning the facts, complaints and compliance with the requirements of exhaustion of domestic remedies and the six-month time-limit laid down in Article 35 § 1 of the Convention must be set out in this part of the application form (sections E, F and G). It is not acceptable to leave these sections blank or simply to refer to attached sheets. See Rule 47 § 2 and the Practice Direction on the Institution of proceedings as well as the "Notes for filling in the application form".

E. Statement of the facts

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1. I have decided to fill this application month ago, after no attorney wanted to take the case (see p.253-264)
The story goes back September'18, when after several times my son was beaten up at school 'het NEST', and i have raised my concern by talking with the school was getting worst. 20.09.2018 i have picked him up from school blue and scratched, at that point i went to the police and filed complain(that was never investigated) against the school. The school did not approve this. My attempt to protect my son was taken personally by the school. This was revenge action.
2. In 2018 I had unannounced home visits (Feb. and Oct.) from the police(see p.1-7) Mainly because of difficult separation between me and Ethan's father in 2017. The visits went well i was asked if I am willing to take combine drugs test, i have agreed the results were - negative
3. On 22.11.2018 Ms. Buelens when to the police with allegations (see p.8-10) against me based on rumors. I have never been asked or informed about anything (see p.60-68 and USB rec.7 & 8) eventually, that led to opening file in the child protective services- OCJ. From which on 21.01.2019 i have received a letter requiring me to present myself at their office. Considering, that i had home visits previous year, and the rapports were positive i wouldn't know why. Therefore asked Ms. Buelens, if they may know something about it. She was denying to have ever contacted the police with such allegations. (USB rec.7-8)
4. The meeting with OCJ was on 05.03.2019 (see p. 14- 19 and 33 and 34), i had with me Mr. Luyts -CLB, and my consoler from MSOC Ms. Bex to support me. I was treated horrible, and without any option to choose from, or time to understand. Regardless the claim from OCJ I did cooperated the best i could for example: I suggested to contact the school, Ethan speech therapist, his psychologist, i have invited them to come and visit us home several time, where they can observe Ethan, and see where i live and how. Idea behind it was to get to know those people and to get better understanding on the entire situation, before I'm able to estimate how Ethan will be effected by it. On top of it i had with me 2 professionals, confirming, there wasn't need for such a pressure. Nothing from what i suggested or Mr. Luyts and Ms Bex said was respected or taken in consideration. Nothing was an option for OCJ only talking with my son alone, that wasn't an option for me. Not under this circumstances. Therefore OCJ confirmed 'disturbing situation' the next day 06.03.2019 the file was transversed to the social services for judicial assistance - SDJ
5. The first meeting, with SDJ was on 03.04.2019 before, that i provided all kind of information including letter from Ethan's speech therapist, that he began to stutter (see p.31and USB rec.3) I have exactly explain in email i have wrote(see p.41-44) my point of view, why i didn't want anybody talking with him alone and how he can be effected Although reasonable, it wasn't taken inconsideration by the person that my child file was entrust to Ms. Shana Vander Haghen. She received, that date also note (see 27-113) with material proving i was framed. Besides my attorney Ms. Rector Ms. Bex-MSOC and Mr. Luyts who confirmed to Ms. Vander Haghen, that the school indeed lied! Ethan had stomach flu which is why I had him with me. As we arrived i asked Mrs. Vander Haghen if someone will look after him. She show me where i needed to be and she was gonna take care of Ethan. She came, and told me Ethan is safe. I trusted it was so. Ethan was alone with open doors across the room we had conversation for over an hour (door's were mat glass with about 2cm opening on both sides up and down) all possibilities and outcomes were discussed including my biggest fear - He will be TAKEN AWAY! My child heard everything! It happened exactly what i was afraid of. By neglect from the social services my son perception of real and unreal collided with each other. He was telling me confusing story, that i initially couldn't make sense of - didn't happened, but it was real for him (see p.111-112 and USB rec.5)
6. On 10.05.2019 I had an final appointment with center for developmental disability-COS, where on my request in Sep'18 Mr. Luyts put Ethan on the waiting list. After standard testing on his speech level, fine motorics and intellectual ability I was going to receive evaluation. Ms. Vander Haghen was interested to come with me, i didn't mind thinking she will see, that I do everything in my power, and reach to every help, that is available to find the exact help we need. Instead her plan was to take the advice, that i asked for, and use it as a reason to keep the file open. It worked!. According to SDJ their advice to the Judge is based on COS evaluation (see p.125-134) SDJ claims COS has noted in the evaluation, that I overestimate Ethan and this contributes to his fear of failure. And concerns with regards "trust issues"- i have. Worries, how would Ethan be effected. I was told by Ms. Vander Haghen on 17.06.2019, that the advice is based on: "What your attorney give me "-referring to the note she received on 03.04.2019. and deny to me participation in the advice letter or to see it. Telling me i had no right. Now i know why! She couldn't show me letter that is basically a lie. I asked if in the letter will be mention, that I was framed? She answered: "I am not going to stand between the school and your lawyer" She didn't had to stand in between she had to do her assignment investigated is it true what the school said or not. That

Statement of the facts (continued)

59.

on his own was gonna put her on the side my attorney was There was no in BETWEEN was RIGHT or WRONG. Strikingly enough she didn't have any problem to literally stand between me and COS, that had nothing to do with the case! She not only stood between, she took it out of my hands and become hers; Once again nothing left for me, everything was reaped of me weaponized, and used against me! Over and over again. (see p.125-134 and USB rec.2)

7. On 26.06.2019 Deliberation in court of first instance. Everything was looking good. On the hearing were 6 people 3 of which attorney's, and i had with me Ms. Bex and Mr. Luyts. Everyone was given the opportunity to speak their point of view except I. I was interrupted by the judge and never was able to say, what i need it to say. However it was clear, i wanted this file closed as unfounded! Surprisingly enough, they basically agreed (USB rec. 4). On the same date the judge received personally from my attorney 8 official document including the evaluation from COS, letter from my psychologist, Ethan subscription in specialize school, the method with the 3 houses...(see p.164 & rec.4) What follows it is absurd. I'm unable to fully comprehend. Or except and move on.

8. On 25.09.2019 was the Verdict. Everything in it, was unconventional. As follows:

- "In the light of concerns, it is appropriate, that Ethan is placed under the supervision of the social service for judicial youth assistance; This is pending the start of context counseling to work with mother on the theme of "trust and distrust" its impact on Ethan and to work on pedagogical themes; This in view of the COS notes, that mother Ethan is overestimate and, given the difficulties Ethan is experiencing with his fear of failure;

At the hearing, the parties agreed, that the minor would be placed under the supervision, of the social service for judicial youth assistance, pending the start of context counseling;"

- Nothing, not even 1 word is true! The only concern that was discussed was the pressure my family was under because of the possibility SDJ getting jurisdiction - my fear now was real. For having certain believes, principles not being naive and for having different opinion was defined as 'trust issues'. SDJ and the Court with reinforced measures try to change who I am, why? I like who I am, don't want to change. In regards how Ethan is effected of who I am, and what i did, i believe it is in his best interests on different accepts, for example: fear shouldn't be parallelizer for him, but his drive, perseverance, resilience..., and of course, he should learn to make difference between trust and naivety. Trust is not given or taken but earned. I don't see how taking away, this qualities from me, would have been in any way beneficial for my child. I am human not machine as long as no one is bother by who I am, there is no need, or wish from my part to be rewritten, up dated or upgraded. If that wasn't enough, Ms. Bex and Mr. Luyts ware not mention in the Verdict as witnesses in my defense instead, they have been replaced by the person without name, that was not there (interpretor) All of the events mentioned above were put together, and some how was said to be - best interest of my child. I didn't see it then and i can't see it now!

9. On 09.10.2019 My attorney lodged in Appeal. Before the file was sent in Brussels i went to the registry of First instance to make sure the file is complete. The 8 official documents that ware given to the judge ware not in the file. But i was reassured, that if they ware other documents, they will be added to the file before is sent to Appeal. On 14.11.2019 i went to the registry of Appeal in Brussels, to make sure the additional documents ware added and the complete file was sent to Appeal; they were not in the file and the lady there was absolutely sure, that is all that was sent to them. 19.11.2019 I went back to the registry of first instance to find out what happen with this documents, and why ware not sent to Appeal. After check up the lady came and told me that everything was sent to Brussels. I disagreed with her insisting, that the documents, that the Judge received personally on 26.06.2019 were not in the file. The chief of the registry was called Ms. Craninckx G. She fount the "missing" documents - like she put them there?! They were going to send them immediately! (2 days before the deliberation in Appeal (see p:163-165 & rec.1)

10. On 21/11/2019 - The date of Deliberation in Appeal (the documents were not there)

My attorney presented the case, she said how many miscommunication and errors were made in this case, and how everything went wrong direction. Didn't seem to be bothered or surprise by it, there was no reaction. The prosecution began to read everything bad, that could be found about me from April'17 till March'18. Sentence's were taken out of context . Also that I have history of drug use. That is true, 7 years ago I had methadone treatment which was followed up by the MSOC doctor. I am not proud of my pass, I still can see it effecting my life. But it shouldn't destroy the future of my son. Why now, that I was doing well? I lost or has been taken away from me almost everything in this year. And kept coming. Just before Appeal the amount of pressure, humiliation, witnessing how the authorities without any scruples ware terrorizing us. I was petrified and after 7 years being clean (see p. 266-275) I collapsed, and as much as I regretted afterwards I couldn't reverse time. I was in situation that is unimaginable without doing anything wrong and now this. Although it was my decision it was not my fault; just another consequence. Despairer. This also was taken away from me, and it meant a lot. They knew I'll crack, it was just a matter of time. I am not looking for excuses, what i did was bad decision, what has been done to me and my son are crimes against us for a long period of time. The judge suggested 2 reasons for pedagogical measures. 1st. the language i speak was wrong. According to her because i speak. English at home with Ethan he has difficulty with expressing himself i disagree firmly believing that speaking Dutch, that I do not

Statement of the facts (continued)

60.

know so well we won't be able to understand each other, what good can come out of it!? I have chosen to speak with my son language, that is not my mother language knowing in the long run will be in his benefit. Since i don't speak Dutch have chosen the second best. Further more the language i speak with my son at home is on me to decide. We shouldn't be prosecuted and convicted for it, then how supervision will in any way contribute to his speech difficulties. Among other obstacles last IQ test was done in April of 2019 by COS he scored TIQ of barely 75 even speech therapist isn't reimburse by the health insurance, if the scientists don't believe speech therapist would help how my broken Dutch or supervision will? If the COS evaluation was read that concern Ethan instead things, that are long gone concerning me, they would know this; But it wasn't. And again Ethan is lost! 2nd. reason was because i want the same (guidance). My attorney said: "Yes, if that is best for Ethan she does" the judge couldn't understand where is the problem then, if i had extra supervision? First of all my attorney didn't say "yes" she said: "IF then yes"! I wasn't allowed to speak, or has been spoken to me as i wasn't there, but the fate of my child was discussed.

12. 12.'19 I received confirmation of recipient - On the Complain letter I wrote at 01.12.2019 to the HCJ.

13. 19.12.2019 Judgment - I could compare it with the documents my attorney made for me. At first side looks OK, soon after those documents have been used against me and covering up the people, that should be prosecuted. Reading the judgment, I had mixed feelings. On one hand I was relieved, that the claim of the prosecution was nullified as unfounded, on the other hand I was upset, that doesn't mention what Ethan and I went through, it doesn't compensate, it doesn't recognize what the social service did to us, it doesn't hold responsible the school, it doesn't consider the money, the time the energy I spent. And most of all they have damaged my son and then says "It is regrettable that Ms. Gayanovich did refused to participate in social necessity investigation" Furthermore, "the voluntary assistance that she began should be given a chance" – Given a chance? Every chance or opportunity I could have, was ripped off me, everything was taken – nothing left or even less given! I don't need mercy, I need Justice, so I'm able to glue the pieces and get our life's back. The Judgment it self has been used against me (see p.259) My son and I were victims I want this status we have suffered enough- it's earned!

14. 22.01.'20 Final decision HCJ- Lack of authority - no jurisdiction

15. 26.12.19 I have contacted Jo-Line with complains such as: never was allowed to file the file, the advice is a lie, what happened to my son so on and so forth I have sent to them all materials supporting everything I said was true. On 02.04.20 I have received conclusion from them as follows: "The JO-line complaint investigation does show, that the social investigation was drawn up in accordance with the rules of the Growing Up Agency. JO-line cannot demonstrate that the consultant relied on lies for her advice. Consequently, this Complain element is unfounded". When I called, she screamed at me! And it was clear she didn't read COS Evaluation. (see p.196-207; USB rec.6)

16. 28.05.20 I wrote Letter of concern to Mr. Vanobbergen, in the beginning of the letter I expressed that things, like this at social services shouldn't be overlooked ignored, with other words, shouldn't be forgotten. I have sent to him also, everything I had. The answer I received mesmerized me! He had offered me "the right be forgotten" (see p.233). This is wrong on so many levels; First of all, what has been done is crime and the main victim was a helpless innocent 6 y/o boy. By agreeing with the proposal, I would be part of it. After so many of our rights have been denied to us, that is the last one I want to use! At this point I have released, that we will never be seen as a human being equal to them, with the same rights. We are being used, abused and put through tremendous terror for their own goals and benefits. I have been threatened by Nele Demuyne (school manager Rotselaar) if I call one more time I'll be sued. What next? There is nothing effective in this country I could possibly do; Our life's much feels and looks like the "Hunger games" - at this point I have decided to fill in the application form and sent it to ECHR. The threats have began, whenever i go on search for help I am being rejected and left with the feeling of guilt, like i did something wrong. The truth is, that I am in this situation, for doing what the society expect me to do, and the Law obligates me. Now i have been judged unfairly by that exact society, just as i have been together with my son mercilessly interrogated, humiliated, we suffered mentally, emotionally, physically and financially, we have been hunted down like an animal, I have been prosecuted and eventually convicted in contradiction of the facts. While the after school care has given my son to someone, that was assumed to be under the influence of drugs several times, i wasn't told. Then the school heard about it and the idea to teach me a lesson was born, all they had to do is add some lies to it. SDJ have done damage beyond repair, by neglecting my child, they have stolen from me, they have lied and used my child rights against him. And if that wasn't enough the court not only cover for them help them in crime as well. In Appeal the language I speak was said to be wrong; the HCJ I believe contacted them on 12.12.2019 with the info i have given therefore i "won". They all have been helping each other and keep doing things, that the Law they have the responsibility to apply strictly forbids them. And on top of it all I am unable to lodge complain in the court, because the attorneys defend them. Who will help us? Until now i have done everything as prescribe by Law no success so far! If what it takes to get myself in court to be heard is a crime so be it. Who will be judging me? I didn't have kid to be exploit by the local authorities; We are free human beings not slaves, with the equal rights. I cannot live suppressed, terrorized and in a constant fear, of what can happen with my son!

F. Statement of alleged violation(s) of the Convention and/or Protocols and relevant arguments

61. Article invoked Article 3 Prohibition of torture CRC Article 37 Inhuman treatment and detention	Explanation My family was merciless interrogate by both services OCJ and SDJ, prosecuted and eventually I was convicted of "being a bad mother" by the juvenile court of first instance/Leuven. And this because of the wrong, that has been done to us by the Social SDJ and Juvenile Court (mainly). My attempt to protect my child was turned around and used against us. Not only by the school, OCJ, SDJ and the Juvenile Court did it as well. The events in period of 1 year were defacing for us, and the hardest impact was on the one they suppose to protect; My son. For example: I was referred to psychologist by my employer, and had to stop working temporarily, had to spend a lot of money, time and energy trying to keep my child safe from not someone else but the Social services for judicial assistance. I fought against the odds with poor chances of winning. On Ethan the fear of realizing what would be without mommy manifested in Stuttering nightmare's; His perception of real and unreal collided with each other, we were living in constant fear, uncertainty, insecurity, i couldn't sleep or eat petrify by the thought how far can they go and to what end ?. (see p.31,62-66,111,124 rec.3 & 5)
Article 6 Right to a fair trial	Haven't had yet viewed the file at the social services for judicial assistance, the information i had was not correct, confusing, incomplete, lie, or not information at all, Even from at attorneys. The people at school that have lodged The court of first instance in Leuven have lied on the verdict and hided 8 official documents (see p.164 and rec1), that were the most important for proofing my innocence and 2 times they went "missing". I didn't had interpreter, but was on the verdict, I had two witnesses with me that knows me and Ethan for years their opinion wasn't taken in consideration neither were mention on the verdict. The court of first instance not only weren't objective they have done a crime so they could have my son trial
Article 8 Right of respect for a private and family life CRC Article 16 Right to privacy	My reputation, integrity as a mother and citizen was question by neighbors, at my son new school (parents and teachers), my son was questioned after SDJ called CLB(new school) saying i was duly investigated suggesting talking with Ethan how is it at home. Keep bringing my passed although were never any suspicion or assumption that i neglect Ethan, or evidences that he was in potentially dangerous situation. The opposite. Even in the complaint from the school the principle says that I am overprotective and Ethan is always clean well dressed with accordance with the whether, has always food and drink
Article 9 Freedom of thought, conscience and religion	I did fought for certain things i deeply believe in! For example: if pedagogical measures were imposed on us and i had home guidance i wasn't gonna be seen as a mother, that wants to do this for her child, but as a mother obligated by the Law to do so. That would entail further complication; home guide wouldn't respect my home, my opinion, me as a person or a mother. In condition like it I am not able or willing to cooperate. That would mean to work against everything i believe in. Then COS warned us not to overwhelm him, because can do more harm then good. I did took note of it. Although, i want to have home guidance i was considering the fact, that we just switch to special education, where everything was gonna be new, and should adapt to his needs. It was presented in different light. Was said if something is imposed on me oppose and consequentially was said: "having problems with authority."
Article 10 Freedom of expression	Having opinion which was supported with solid facts and arguments, that is best for my son to first see what and how the new school has to offerer and after i consoled with them, i will estimate if the home guidance is necessary for us. At this point i wasn't sure and not willing to take the risk and overwhelm my boy. Again the social services and the court not only worked against me and best interest of my child, it was used against us by saying that i need to be motivated torts having guidance. It wasn't motivation, that i needed but time. I never had any issues to rise concern or ask help. With trying to force me to do something, that has potential to harm my son, they demotivated me. The believe in force aid was vanishing by the minute.

Statement of alleged violation(s) of the Convention and/or Protocols and relevant arguments (continued)

62. Article invoked

Explanation

Article 13 Right to an effective remedy

CRC Articles 4, 5, 14

Documents were hidden, or not submitted. SDJ Advice was a lie based on rumors, the Verdict not only supported them but it help them in crime as well. I was never given information on what to do after the judgment from Appeal. Several attorney's i have contacted told me what not to do, none of them told me what i could do. I find out on Internet that High Council of Justice could and should have refer my case to the European Court of Justice or to ECHR instead they have sent me to my attorney, while i asked them not to refer me to her. The Appeal did not present the facts correctly, but covert up first instance. No one cared or cares what has been done to us. I cannot find attorney, that is willing to represent me. The whole system not only have failed us. They have destroyed us. Knowing that i was innocent and my child surfs the consequences on daily basis

Article 14 Prohibition of discrimination

Protocol 12 Article 1 § 2

CRC Article 2

My son was discriminated based on his age. Being 6 years old his opinion wasn't asked. What would be best for him was decided by the social services. While my opinion or opinion's of professionals weren't taken consideration I was discriminated by my status as a single mom, not being from this country, I was considered as easy target, i was judged and blamed, because of the language i speak with my son, based on my passed 7 years ago, without considering the changes and accomplishments in last 7 years until present days.

-On the other hand the school was never asked anything knowing they lied. SDJ was never hold responsible for what they have done. While i and my son were stoned and crucify even the authorities knew i was innocent and that Ethan is the one suffering the consequences

Article 17 Prohibition and abuse of rights

My son rights to be heard and best interest of the child were abused on the way of using, them to partly withdraw my rights as a parent to speak, decide on his behave as well as to protect him. consequentially the voice and best interest, that ware heard were the one from Social Services and the Juvenile Court Child best interest first was never the case my child was never considered. The government did not respected my right and responsibility to guide and protect my child.

Protocol 7 Article 3
Compensation for wrongful conviction

CRC Article 39

On 25.09'19 based on rumors, regardless of the facts, untruthful statements, falsify and hidden documents the court of First Instance in Leuven has convicted me of being "bad mother" and has imposed pedagogical measures on me for period of 1 year. Eventually on 19.12'19 was . But no compensation

My child was neglected by Ms. Vander Haghen 03/04/19 she left 6 years old boy alone in the room from where he could listen for over an hour conversation, that terrified and specially the possibility to be removed from home. That alone was so dramatizing that he had develop PTSD Feb'20 i had to pick him up after school i was several minuets too late he had break down the teachers couldn't calm him down, they put him in the "quite room" it is basically a empty room with one big punching bag on the floor. The next day we had emergency meeting we concluded, that being behind the gate is trigger for him to interpretation of his false memory - separated from me

G. Compliance with admissibility criteria laid down in Article 35 § 1 of the Convention

For each complaint, please confirm that you have used the available effective remedies in the country concerned, including appeals, and also indicate the date when the final decision at domestic level was delivered and received, to show that you have complied with the six-month time-limit.

63. Complaint**Information about remedies used and the date of the final decision**

- | | |
|--|--|
| <p>I. 22.11'18 School - I was framed by elementary school "het NEST" as revenge action</p> <p>II. 05.03'19 OCJ - send the file to the prosecution At this point certain aspects of my rights as a parent were withdrawn</p> <p>III. 19.06'19 SDJ -The bigger part of their letter was a lie; With huge potential to harm my son.</p> <p>IV 25.09'19 Verdict - Court of First Instance/ Leuven.
File N° 18085.M.2019/1/14
It was the advice of SDJ. Certain untruths, witnesses not mention, and hidden documents</p> <p>V. 21.11'19 Appeal Hearing
Things were taken out of context,i was discriminated on: language i speak, the past wasn't allowed to speak</p> <p>VI. 19.12'19 Judgment Appeal
Roll N° 2019/PJ/387
- not mention impact on Ethan
- no compensation
- doesn't clear my name
- used against me</p> <p>VII. 22.01'20 Final decision - HCJ
- lack of jurisdiction</p> <p>VIII. Meeting:12.02'20 - canceled meeting: 21.02'20 - canceled/
11.05'20 consultant doesn't want</p> <p>IX. 02.04'20 Jo-Line finds no faults at SDJ. My file - closed</p> <p>X. 04.06'20 Mr. Vanobbergen offer me to erase the file at SDJ</p> <p>XI.22.06'20 HCJ -not authorized to issue such attestation</p> <p>XII. 08.06'20 CHR Gent- some contacts, no competence</p> | <p>- February'19 I have contacted CLB for this school asking for help, they have percent: 05.03'19-OCJ; 03.04'19-SDJ; 10.05'19-COS and 26.06'19 Court of First Instance .</p> <p>- MSOC was on all dates mention above as well</p> <p>- 29.03'19 Search for help: email to the Prime Minister of Belgium, Embassy of Bulgaria, Human Rights Center Gent</p> <p>- 01.04'19 Visit: The Prime Minister, Federal Ombudsman, High Council of Justice - visit in person, and Children Rights Commission - first contact by phone</p> <p>- 18.06'19 Letter from my psychologist expressing concerns in regards to my fears</p> <p>- 26.06'19 COS evaluation and the method with 3 houses given to the judge</p> <p>- 26.06'19 Conclusion i was framed requesting the file to be closed as unfounded</p> <p>- 26.06'19 Ms. Bex - MSOC and Mr. Luyts - CLB - witnessing in my-</p> <p>- 09.10'19 Lodged Appeal</p> <p>- 11.11'19 I went to the registry of Appeal in Brussels to inspect the file. 8 official documents were not there</p> <p>- The missing documents were given to the judge in Appeal on 21.11'19</p> <p>- Email to the Center of Human rights Gent - Ms. Eva Brems</p> <p>- 25.11'19 I sent email to the Children's Right's Commission asking them for help</p> <p>- 01.12'19 Complaint letter I wrote to the HCJ with chronological elaboration from Sep'18 until Nov'19</p> <p>- 17.12'19 Letter from Children's Right's Commission for the judge in Appeal</p> <p>- 12.12'19 Letter from HCJ- examination whether has competence to handle my file</p> <p>- 26.12'19 Contacted several attorney for advice how should i proceed</p> <p>- 26.12'19 email to Jo-Line asking their assistance with viewing the file at SDJ</p> <p>- 31.12'19 Letter to the HCJ Current situation - I am explaining that the Jugsment is uncompleted asking them for help or to be reefer somewhere to be help</p> <p>- Contacted my attorney with request to lodge in Supreme court - she didn't want to.</p> <p>- On 10.01'20 meeting for 12.02'20 with the consultant SDJ -closure/viewing the file</p> <p>- On 06.02'20 I was contacted by the team leader of SDJ meeting for 21.02'20</p> <p>- 28.05'20 I wrote "Letter of concern" to the General Director of Agency of Growing up Mr. Vanobbergen</p> <p>- 16.06'20 I asked attest from HCJ for exhaustion of all effective domestic remedies</p> <p>- Trying to find attorney to help me with the application for ECHR - All attorneys refused to help me</p> <p>- On 23.06'20 I began to work on the application form for ECHR my self</p> <p>- 03.07'20 Contacted Center of Human Right's- GENT - with request to go though my application and improve it.</p> <p>- On 09.06'20 Phone with info desk at Just-rights Mr. Zouhaier Chihaoui</p> <p>- On 16.07'20 Application sent to the ECHR</p> |
|--|--|

64. Is or was there an appeal or remedy available to you which you have not used?

☒ Yes

☐ No

65. If you answered Yes above, please state which appeal or remedy you have not used and explain why not

-I did not go to Supreme court. At first i was told that i need attorney to be able to lodge appeal there, but couldn't find attorney willing to take my case. I was discouraged and afraid as well, because every attorney i have spoke told me basically the same; it is better not to, because that would mean I am going against the state, and that is a bad idea.

- In the 2nd. letter i wrote to the Hight Counsel of Justice I am asking them if they help me or refer me somewhere to be helped further. They have sent me back to my attorney, where i specifically asked not to be referred.

-I didn't have no one to show me the right direction, or to give me advice on what to do, every one was telling me what not to do.

-I did researches on my own, and i read on the web side of the Supreme court it self i believe, that they do not take in consideration the facts, only on breaches of Law in the last Judgment, and they can annulled but i wasn't sure if that would mean that the verdict from first instance is again the one that counts...

-I did not find it as a effective for my case. Further more the High Council of Justice did not obliged me or refer me there either.

H. Information concerning other international proceedings (if any)

66. Have you raised any of these complaints in another procedure of international investigation or settlement?

☐ Yes

☒ No

67. If you answered Yes above, please give a concise summary of the procedure (complaints submitted, name of the international body and date and nature of any decisions given)

68. Do you (the applicant) currently have, or have you previously had, any other applications before the Court?

☐ Yes

☒ No

69. If you answered Yes above, please write the relevant application number(s) in the boxbelow

I. List of accompanying documents

You should enclose full and legible *copies* of all documents. No documents will be returned to you. It is thus in your interests to submit copies, not originals. You **MUST**:

- arrange the documents in order by date and by procedure;
- number the pages consecutively; and
- NOT staple, bind or tape the documents.

70. In the box below, please list the documents in chronological order with a concise description. Indicate the page number at which each document may be found

1.	2 Police Reports from February and October 2018	p.	1-7
2.	Complain from Ms. Buelens the principle of "het NEST" - 22.11.2018	p.	8-10
3.	OCJ - Report 21.01.2019 - 06.03.2019	p.	11-19
4.	29/03/19 Search for help: email to the Prime Minister of Belgium, Embassy of Bulgaria, Human Rights Center Gent	p.	20-26
5.	01/04/19 Visit: The Prime Minister, Federal Ombudsman, High Council of Justice. called Children Rights Commition Note from my attorney that was given to SDJ on 03.04.2019 (testimony's; emails school present/abstence- falsify +real, emails after school care...)	p.	27 - 113
6.	September'18 - 10.05.2019 Center for developmental disability - COS evaluation	p.	114 - 123
7.	18.06.2019 Letter from my physiologist	p.	124
8.	06.03.2019 - 19.06.2019 SDJ Advice to the Judge	p.	125-134
9.	26.06.2019 - Conclusion Rector L.	p.	135-140
10.	24.06.2019 - The method with the three houses	p.	141-143
11.	25.09.2019 Verdict Court of First Instance Leuven	p.	144-147
12.	14.11.2019 - Email to CHR Ms. Brems	p.	148-150
13.	01.12.2019 Complaint Letter to the High Council of Justice - Elaboration's events from September 2018 until November 2019 (included)	p.	151-172
14.	12.12.2019 - First letter . from the High Council of Justice	p.	173
15.	17.12.2019 - Letter I revived from Children's Right's Committee , after i have contacted them asking to help me keep my child safe and healthy.	p.	174-177
16.	19.12.2019 - Court of Appeal - Judgment	p.	178-184
17.	31.12.2019 - Current situation (after appeal) Second letter i wrote to the HCJ complaining, that the Judgment is incomplete it is not in my favor and asking to help me or for referral somewhere higher	p.	185-194
18.	22.01.2020 . letter from the High council of justice the designation was, that the committee cannot or may not deal with my complain, because lack jurisdiction.	p.	195
19.	26.12.19 - 02.04.20 Jo-Line phone complain line for the OCJ and SDJ. I have contacted them to assist me viewing the file at SDJ. most of all i needed to talk with Ms Vander Haghen, i need answerer so i can have some kind of closure.	p.	196-207
20.	05.02.20 Trying to make an appointment with Ms. Vander Haghen which turns out to be impossible. Mr. Eymael G. wouldn't allowed, because Ms. Vander Haghen does not wish to have a meeting with me.	p.	208-224
21.	28.05.20 Email's to the General Director of Growing Up Mr. Bruno Vanobbergen,after Jo-Line conclusion. I wanted to inform him about what has been happening (OCJ, SDJ, Jo-Line), therefore i wrote Letter of Concern to him	p.	225-242
22.	Emails to the mayer and to the manager of youth for municipal of Rotselaar/ Emails to several attorneys asking help to lodge complaint against the school and SDJ in the court/ Leuven.Afterwords with filing in the application for ECHR.	p.	243-263
23.	I have asked attestation of exhaustion of all effective remedies from HCJ	p.	264-265
24.	Urine analyses/	p.	266-275
25.	Finances/ 1 USB stick with 10 recordings on it	p.	276-287

Any other comments

Do you have any other comments about your application?

71. Comments

- No one should be condemn based on his / her past, just as no one is justify by it. The Law should be strict, no doubts about it but not cruel other wise it is not Justice but Dictatorship. No one should be above the Law - even, and specially not the once that have the responsibility to apply it. Brings destructions not peace. I cannot trust or obey Law, that punish the weak and innocent for doing what the same Law obligate us, and rewords services for doing what the Law forbids them

Declaration and signature

I hereby declare that, to the best of my knowledge and belief, the information I have given in the present application form is correct.

72. Date

1	7	0	7	2	0	2	0
D	D	M	M	Y	Y	Y	Y

 e.g. 27/09/2015

The applicant(s) or the applicant's representative(s) must sign in the box below.

73. Signature(s) ☒ Applicant(s) ☐ Representative(s) - tick as appropriate

Confirmation of correspondent

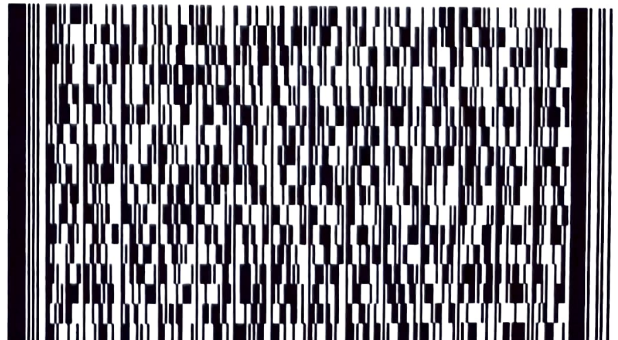
If there is more than one applicant or more than one representative, please give the name and address of the one person with whom the Court will correspond. Where the applicant is represented, the Court will correspond only with the representative (lawyer or non-lawyer).

74. Name and address of ☒ Applicant ☐ Representative - tick as appropriate

Diana Gayanovich
Aarschotsestenweg 82/0002
3111 Wezemaal

The completed application form should be signed and sent by post to:

The Registrar
European Court of Human Rights
Council of Europe
67075 STRASBOURG CEDEX
FRANCE



893669e1-66ca-4653-b9e0-2de2561a694b



EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

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ECHR-LE11.00R
ALD/QVE/kje

01/10/2020

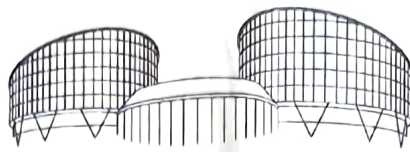
Application no. 31464/20
Gayanovich v. Belgium

The European Court of Human Rights, sitting in a single-judge formation, decided to declare the application referred to above inadmissible.

Please find enclosed the decision reached by the Court.

This decision is final and is not subject to appeal, whether this be to a Committee, a Chamber or the Grand Chamber. Consequently, no further correspondence will be sent by the Court in connection with this case. In accordance with the Court's archiving practice, the file will be kept no longer than one year after the date of the decision.

The Registry of the European Court of Human Rights



EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

DÉCISION

AFFAIRE GAYANOVICH C. BELGIQUE

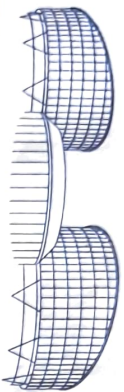
*(Requête n° 31464/20)
introduite le 18 juillet 2020*

La Cour européenne des droits de l'homme, siégeant le 24 septembre 2020 en formation de juge unique conformément aux articles 24 § 2 et 27 de la Convention, a examiné la requête susmentionnée telle qu'elle a été présentée.

La Cour juge que, contrairement à ce qu'exige l'article 35 § 1 de la Convention, les voies de recours internes n'ont pas été épuisées, faute pour la partie requérante d'avoir soulevé devant les autorités internes compétentes, que ce soit formellement ou en substance et conformément aux exigences procédurales applicables, les allégations dont elle a saisi la Cour.

La Cour *déclare* la requête irrecevable.

Tim Eicke
Juge



EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME



COUNCIL OF EUROPE
CONSEIL DE L'EUROPE

EUROPEAN CONVENTION
ON HUMAN RIGHTS

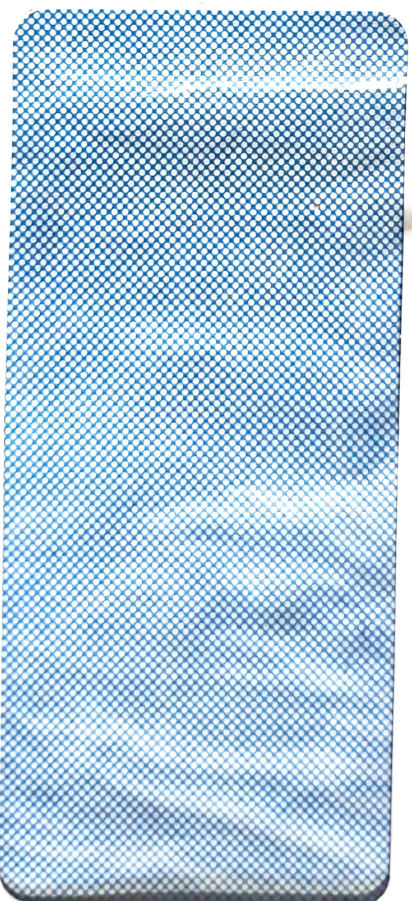


1950-2020

CONVENTION EUROPÉENNE
DES DROITS DE L'HOMME

F-67075 Strasbourg cedex

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